सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part III

Date: 03 .04.2018

दिनांक 20.03.2018 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 20.03.2018

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 20.03.2018 को 11:30 बजे हुई। जिसकी अध्यक्षता संयुक्त रूप से श्री विनायक आज़ाद, आयुक्त (आयात), श्री विनय बृज सिंह, आयुक्त (विशेष हवाई माल) और श्री एस. अनंत कृष्णन, आयुक्त (निर्यात), द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 20.03.2018 at 11.30 A.M. and was jointly presided over by Shri Vinayak Azaad, Commissioner of Customs (Import), ACC, Sahar, Shri Vinay Brij Singh, Commissioner of Customs(APSC) and Shri S. Anantha Krishsnan, Commissioner of Customs(Export), ACC, Sahar.

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री राजू सक्थिवेल/Shri Raju Sakthivel अपर आयुक्त (निर्यात)/Addl. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री तपन कुमार Shri Tapan Kumar, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री कैलास वि. कारखिले/ Shri Kailas Vinayak Karkhile, सह. आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री प्रसाथ जे./ Shri Prsath J., AC(Import) सह. आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri G.K. Kumar, Shri K. D. Dhule, Shri P Raghuraman, Shri V.S.Kadam	Air India
Shri Manoj Singh, Mr. Mohamed Nasir, Shri Nandan Kanchan	MIAL (Custodian)
Shri Ketan Desai, Shri Kaushal Thakker, Shri Sanjeev Harale, Shri Paresh R. Sangani	BCBA (formerly known as BCHAA)
Shri Nimish Desai, Shri Paresh Shah	WISA
Shri Bala Ayer, Mr. T.A. Verghese , Shri M.G. Chaurasia	ACAAI
Smt. Jyotsna Patil	Jet Airways
Shri S.K. Singh	SBI
Shri Sudhir	Manipur Air Logistics
Shri Vijay Phadtare	Singapore Airlines
Mr. Zubin Daver	Cathay Pacific
Shri Abhijeet Ahire	Qater Airways
Shri Harish Zade	Luftansha Airlines

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1. Points from the previous PTFC meetings which were taken up for discussion:

A. Weeding out old Dockets

In previous meeting, representative of M/s Newgen intimated that after scanning, the files/dockets are stored in the boxes and placed at the Pipeline Warehouse. However as the storage space at the warehouse is fully occupied, these dockets are lying in the Shed. The documents of 2011 are already available in soft copy, they may be permitted to weed out the documents of 2011, thus creating storage space for the documents of the current year.

MCD(I) Section informed that they have sent a letter to Document Management Systems M/s. Newgen Software Technology permitting them to weed out the dockets of export of the year 2011 also to Cargo(Admn), GVK, MIAL, Air Cargo Complex, Mumbai.

The representative of MIAL stated that the process of weeding out old Dockets has already been started. Accordingly, the Chairman decided that the point may be closed.

[Action: Point closed]

B. Simplification in 1st time import procedure

In the previous meetings, the representative of BCBA stated that procedure of 1st time import registration after roll out of GST needs to be reviewed for registration in a time bound manner.

The representative of BCBA requested for issuance of a Public Notice in line with Public Notice No. 112/2017 issued from JNCH, Nhava-Sheva whereby only one document i.e. either copy of Adhaar or IT Return is required to be submitted.The Joint Commissioner of Customs (Import) informed that a Public Notice No. 48/2017 has been issued by the department. He further added that submission of Adhaar Copy is not sufficient as the purpose is not only to establish the identity of the importer but it is to identify the financial condition or credential of the importer or their firm.

In the meeting, the representative of BCBA stated that vide Circular No. 02/2018-Customs, Board has simplify the norms for KYC verification in the case of import or export through Courier. Further, the representative of ACAAI stated that the department should not discriminate between Courier and Cargo as regards KYC verification, accordingly, they requested for issuance of a Public Notice in line with the said circular.

The Chairman informed that the process of simplification of KYC documents and it verification has already been initiated and the same will be sorted out shortly.

[Action: ADC/Import]

C. Offloading of Export Cargo

In the previous meeting, the representative of ACAAI stated that offloading of export cargo from the agent's truck is slow in Air India areas as no loaders are available. The trade representative expressed that there is very poor working facility in Air India Export Shed. It was also pointed out that no senior officer/supervisor is available in the dock area to look into the problem. Earlier, the chairman directed the representative of Air India to put extra loaders and depute one supervisor for each shift in the Docks area. Air India was also requested to display Mobile Number of such supervisor/manager.

In the instant meeting, the representative of Air India and the trade body has unanimously accepted that the situation has been improved substantially. Accordingly, the Chairman decided to close the point.

[Action: Point Closed]

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D. SCN for drawback for period which already been closed

In the previous meeting, the representative of ACAAI stated exporters are once again receiving SCN for drawback for the period which has already been closed and SCNs are dropped. They requested that all shipping bills should be closed immediately after SCN is dropped. Earlier, the Addl. Commissioner of Customs (Export) stated that in some cases the SCNs have been issued for different periods but exporters have submitted negative statement for only some of the period, hence such SCNs cannot be dropped till the submission of negative list for full period under the SCN.

While submitting action taken report for the previous meeting, the Addl. Commissioner of Customs (Export) has reiterated that they already clarified in the previous meeting that in some cases the SCNs have been issued for different periods but exporters have submitted negative statement for only some of the period hence such SCNs cannot be dropped till the submission of negative list for full period under the SCN. He further stated that as per the data received from ICEGATE/EDI, for Shipping Bills with LEO date prior to 01.04.2013, there were 6508 cases, where BRCs have not been submitted. In this regard, a Facility Notice dated 07.06.2017 and subsequent Public Notice dated 17.07.2017 were issued for the exporters to submit the proof regarding realization of export proceeds. The copy of the Facility/Public notice was also forwarded to FIEO, Importer & Exporter Association, CHA Associations etc. After the period given in above public notice is over, Demand-cum-Show Cause Notices issued to 4784 exporters, who have not submitted any documents. After issuance of Demand Notices, around 1150 cases have been decided till date after submission of requisite documents by the exporters and the Shipping Bills are closed in the ICES system also. In rest of the cases, further opportunity for personal hearing have been given to the exporters for submission of documents, after that the cases will be decided ex-parte on the basis of available documents and Shipping Bills will be closed in the ICES on the basis of the documents submitted by the exporters.

The Chairman informed the trade that a lot of positive development in the matter has happened and dropped the point for 03 months.

[Action: Point Dropped)]

E. NOC for import of Vaccine

In the previous meeting the representative of BCBA informed the house that while import of vaccine the documents were only transferred to ADC for their NOC. Now for some of the days it has been noticed that import vaccine is also being transferred to Animal Quarantine for NOC as well as ADC NOC which causes undue delay of consignment. Earlier, the chairman stated that this is system (ICES 1.5) error and the same will be taken up with the DG(System) and Single Window Team of CBEC to resolve this at the earliest. He further added that the subject issue has also been taken up by the Commissioner of Customs with Commr.(RMD) and requested to inform such cases to Commr.(RMD) also.

In the instant meeting, the Chairman informed the house that the matter has been taken up by the Additional Director General, RMD with DG Systems(Single Window), CBEC, New Delhi. The decision as taken will be informed the moment it is available. No reply has been received yet.

The Chairman directed that reminder letter may be issued to DG Systems(Single Window).

[Action: AC/EDI]

F. Increase in dwell time due to non-intimation of arrival of cargo by FedEx, UPS

In the instant meeting the representative of BCBA informed that on account of late intimation for arrival of cargo by carrier such as FedEx, UPS etc., there is increase in dwell time for clearance. This results in delay of clearance and non-compliance of Custom Notification No. 26/2017 NT which mandates filing of Bill of Entry in advance or on the same day of arrival.

They suggested that there should be proper accountability of such stakeholders, who should be made to follow the compliance and endeavor of CBEC for timely clearance of Import

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consignments. At present, trade is suffering delay in clearance, payment of demurrage charges, payment of late submission fee etc. on account of these carriers.

The representative of MIAL informed the house that they had taken a meeting with the representative of the UPS and FedEx and informed that the segregation work is being done after landing of flight into India which causes delay in further clearance process. They suggested that such segregation should be carried out at the initial point of loading to avoid unnecessary delay.

In the instant meeting, the Commissioner of Customs(APSC) assured that the issue will be resolved by convening meeting with FedEx and UPS.

[Action: MIAL, FedEx, UPS]

G. Proper working of 24x7 facility

In the instant meeting the representative of BCBA stated that for timely clearance of import / export cargo, CBEC has introduced 24x7 schemes. However it is experienced that all stakeholders are not available to facilitate clearance under 24x7. Inspite of presence of Custom Officers, the other stakeholders such as Airlines, Console Agents are not available on holidays, 2nd Saturdays and even on normal working day also they have restrictive working hours.

They suggested that for reduction of dwell time for clearance, all stakeholders must follow the guidelines issued by CBEC. The Chairman informed that the Facility of Direct delivery has been recently started at Air Cargo Complex and further steps in this regard will be taken in due course.

[Action: ADC/Import]

H. Release of DO

In the instant meeting, the representative of ACAAI submitted that sometimes delivery of import consignments is delayed because the DO is not yet released by the Airline / Consol agents. This increases the dwell time and unnecessary demurrage. Request customs to please issue a PN that all DOs should be released within one hour after payment is made.

The Chairman suggested the representative of ACAAI to submit their grievance in written if any Airline / CONSOL agents deliberately delay the delivery. But, the representative of ACAAI has stated that their grievance is general in nature and not against any individual. The Chairman assured the representative of ACAAI that he will examine the matter.

The Chairman directed to issue the letter to Airlines/CONSOL agents

[Action: Airlines/CONSOL Agents]

I. Implementation of Pure Agent concept

In the instant meeting, the representative of BCBA submitted that 'Pure Agent' concept in GST Billing for exports is still not started by the MIAL.

In earlier meeting the representative of MIAL informed that their Billing system is under review. Accordingly, they suggested the representative of BCBA and ACAAI to submit their representation. They further informed that BCBA has submitted their representation. But, ACAAI had not yet submitted their representation. The representative of MIAL informed that they will hold meeting with BCBA and ACAAI and sort out the matter. Since the issue is being handled by MIAL, the Chairman decided to drop the point.

[Action: Point dropped]

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J. **Not accepting payment via RTGS/Cheque**

In the instant meeting, the representative of BCBA submitted that Air France, Singapore airlines not accepting payment via RTGS/Cheque, ACC P.N. 16/2016 is ignored by the airlines; this is resulting in delay in clearance and cost. The Chairman directed the airlines to make necessary arrangement for taking the payment.

[Action: Airlines]

K. **Scanning the bar code instead of writing the examination report by Examining Officers**

In the instant meeting, the representative of ACCAI submitted that in Courier Cell, the examining officer need not write the examination report after examination. He merely scans the bar code with his "bar code reader" and is immediately captured in the system. They demanded the same facility at ACC. This will considerably reduce the dwell time. The AC, (EDI) informed that Commissionerate has already taken up the matter with DG (System) to provide 'Hand Held Devices'. After receipt of the same situation will improve tremendously. The Chairman informed the house that the matter is again being taken up with the DG Systems, CBEC, New Delhi.

[Action: AC/EDI]

2. **New point for discussion in this meeting**

A. **Additional Appraising officers required for timely Assessment of Export SB**

In the instant meeting, the representative of BCBA submitted that additional Appraising Officers required for timely Assessment of Export Shipping Bill. The Chairman informed that considering the volume of work in export assessment, enough Appraising Officers will be posted accordingly.

[Action: Point Closed]

B. **Delay in forwarding of cargo for examination and thereafter for delivery due to shortage of Forklift at AI shed, thus causing hardship to members**

In the instant meeting, the representative of BCBA submitted that there is inordinate delay in forwarding of cargo for examination and thereafter for delivery due to shortage of Forklift at AI shed, thus causing hardship to members. In response, the representative of Air India has informed the house that issue of shortage of Forklift has been resolved. Accordingly, the point is closed.

[Action: Point Closed]

C. **Delay in giving IGST Credit by CONCOR**

In the instant meeting, the representative of BCBA submitted that a large No. of Custom Brokers/Importers have not got GST Credit from CONCOR. They requested that as per time line set by GST, the credit should be given immediately. The Chairman directed the representative of MIAL to look after the difficulties of the trade and sort out the issue.

[Action: MIAL]

D. **Removal of option to put the BE in "Pending" from the AC/DC menu:-**

In the instant meeting, the representative of ACCAI submitted that In Imports, the AC / DC has an option to put the BE into "pending" when the BE comes up on his screen. This

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option should be removed. When the BE comes up on the AC / DC's screen, they should either raise a query or pass the BE so that we will know the exact status of the BE. The matter was discussed in the meeting and found that it is not feasible to remove the said menu. Thus, the Chairman closed the point.

[Action: Point Closed]

E. Delay in acceptance of Customs cleared Cargo by Airlines in Export Heavy Shed:-

In the instant meeting, the representative of ACCAI submitted that In Export Heavy Shed, airlines delay acceptance of customs cleared cargo because they insist on checking BAG first and then accept the documents. This matter has been discussed before and it was decided that airlines cannot make the CB wait till they have checked with BAG counter. This holds up their staff who are unable to attend other work. The airlines are CX / BA / 9W / TK. The representative of Airlines stated that the handing over of cargo to Airlines is very important in nature. Hence, Airlines have to follow Standard Operating Procedure. However, the Chairman directed the representative of MIAL to look after the issue to avoid inordinate delay.

[Action: MIAL/Airlines]

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदयों आयुक्त महोदय (आयात) एवं आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Chairman of the PTFC, Commissioner of Customs (Import) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

3/4/18

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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